

**In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)**

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No. 40 of 2020.

Khagesshor and others.

..... Petitioners.

-VS-

Sree Prio Gopal Singha and others.

..... Opposite-Parties.

Mr. Md. Abdul Haque, Advocate.

.....For the petitioners.

Mr. Mahmud Hasan, Advocate.

.....for the opposite-parties.

**Heard on: 10.07.2023 and
Judgment on: 12.07.2023.**

The Rule was issued calling upon the opposite parties to show cause as to why the impugned judgment and order dated 07.11.2019 passed by the learned District Judge, Thakurgaon in Civil Revision No. 19 of 2019 affirming the judgment and order dated 01.07.2019 passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Execution Case No. 05 of 2017 rejecting an application for stay should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

The facts leading to the issuance of the rule in a nutshell can be stated thus, that the plaintiff-petitioner instituted being

Other Class Suit No. 29 of 2019 in the Court of Thakurgaon for setting aside the preliminary and final decree passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No. 13 of 2006 stating, interlia, that Benu Dhar Singha was the owner of 7.51 acre land, Goonak Ghar Singha was the owner of 5.77½ acre land Madhu Sudan Singha was the owner of 6.64½ acre land of schedule Ga Lot No. 1 to 12, Madhu Sudan and other heirs of C.S. recorded tenant sold 1.60 acre of land vide sale deed No. 722 dated 25.04.1947 to Hedlu Singh the father of the plaintiff No. 2. The S.A. record of the land along with some other land was published in the name of Hedlu Singha and other co-sharers. Defendant No. 11 Jagadish Singh sold 25 decimals and 37 decimals of land vide sale deed dated 20.03.1984 and 07.05.1984 to the plaintiff Nos. 03 to 06. The BRS Khatian No. 3152 published in the name of the plaintiff No. 02 and BRS Khatian No. 3124 published in the name of the plaintiff Nos. 03 to 06. C.S. recorded tenant Madhu Sudan Singh, Suvaram Singh and Khagendranath Singh sold 1.05 acres of land to Tetaru Singh the father of the plaintiff Nos.7/8. Those land not been included in the Partition Suit No. 13 of 2006. Kishooree Singh sold 87 decimals of land to Tetaru Singh vide deed No. 40 dated 10.01.1955. The S.A. record of the land published in the

name of Tetaru Singh under S.A. Khatian Nos. 526 and 723. Jagadish Chandra Singh the father of the plaintiff No. 05 of the Partition Suit No. 13 of 2006, Khagendra Singh father of the plaintiff No.1/2 of the Partition Suit No. 13 of 2006 and Suvaram Singh and Batashu Singh sold 14 decimals of land vide deed No. 9195 dated 20.06.1975 to the plaintiff Nos. 03 to 06, 07 and 08. Tetaru Singh died leaving his 3 sons Lali Kanta Singh, Naba Prasad Singh and Binoy Kumar Singh. The plaintiff Nos. 03 to 08 are owner of 1.63 acres of land and they are in possessing of the land. The R.S. record of the land was published in their name under R.S. Khatian Nos. 3124 and 3134, the plaintiff No. 9 is the owner of 26 decimals of land and he is in possession of the land. The plaintiff Nos. 11 to 15 are owner of 25 decimals of land and they are in possession of the land. The plaintiffs of the Partition Suit No. 13 of 2006 without serving notices upon the defendants by practicing fraud and by managing the process server obtained the preliminary decree and final decree. The plaintiffs upon receiving the notice of Execution Case No. 05 of 2017 on 10.02.2019 came to know about the preliminary decree and the final decree. Hence, the present case.

The opposite party-decree holders of the Partition Suit No. 13 of 2006 filed a Partition Execution Case No. 05 of 2017

for execution of the judgment and decree. The petitioners have received the notice of Partition Execution Case No. 05 of 2017 on 10.01.2019 came to know about the preliminary decree and the final decree then the petitioner filed Other Class Suit being No. 29 of 2019 for setting aside the preliminary and final decree passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No. 13 of 2006. Thereafter, the petitioner filed an application in the Court of the learned Joint District Judge, 2nd Court, Thakurgaon for staying all further proceedings of the Partition Execution Case No. 05 of 2017. The learned Joint District Judge, 2nd Court, Thakurgaon after hearing rejected the application for praying stay by his judgment and order dated 01.07.2019.

Being aggrieved by and dissatisfied with the order dated 01.07.2019 the petitioners preferred in Civil Revision No. 19 of 2019 in the Court of District Judge, 2nd Court, Thakurgaon after hearing both the parties rejected the Civil Revision No. 19 of 2019 by his judgment and order dated 07.11.2019.

Being aggrieved by and dissatisfied with the order dated 07.11.2019 the petitioners preferred a Civil Revision under section 115(4) of the Code of Civil Procedure and granted the leave and obtained the present Rule and also all further proceedings of the Partition Execution Case No. 05 of 2017 be

stayed for a period of 6(six) months. Thereafter, lastly on 10.05.2023 the petitioners were further extended the order of stay for a period of 6(six) months from the date of expiry.

Mr. Md. Abdul Haaue the learned Advocate for the petitioners and Mr. Mahmud Hasan, the learned Advocate for the opposite parties appeared before this Court.

Mr. Md. Abdul Haque, the learned Advocate appearing on behalf of the petitioners submits that the learned Trial Court as well as the Revisional Court below upon misconceived of law and failed to understand that the plaintiff-opposite parties have been obtained decree in the Partition Suit No. 13 of 2006 without serving the notice upon the defendant-petitioners in accordance with law. The decree has been obtained by practicing fraud upon the trial Court by the preliminary judgment and decree dated 22.01.2013 and the final decree dated 22.04.2017 committed error of law resulting in an error in the decision occasioning failure of justice.

He further submits that the learned Trial Court as well as learned Revisional Court below in pronouncing the impugned judgment and order failed to consider that the Other Class Suit No. 29 of 2019 has been initiated challenging the preliminary and final decree passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No. 13

of 2006 upon cogent and dependable reasoning and now the aforesaid Suit is pending, if the further proceedings of the Execution Case No. 05 of 2017 is not stayed the purpose of the Other Class Suit No. 29 of 2019 would be frustrated and the decree holder of the Partition Suit No. 13 of 2006 will become able to take undue advantage for which they were not legally entitled to get any remedy and the legal right of the plaintiff of the Other Class Suit No. 29 of 2019 will be seriously effected and the plaintiff of the suit will be injured and prejudiced and as such the Revisional Court below as well as the learned Trial Court have committed error of law resulting in an error in the decision occasioning failure of justice.

The learned Advocate for the petitioners lastly submits that the relationship shown by the process server in servicing the notice is not correct and they are not of same dynasty. If the stay application is granted then both the parties will not be affected. Therefore, the Rule may be absolute.

Mr. Mahmud Hasan, the learned Advocate appeared on behalf of the opposite party Nos. 1 to 7 submits that the application for stay is not maintainable in the eye of law. The cause of action is false and fabricated. Without filing of the Miscellaneous Case under order 9 rule 13 of the Code of Civil

Procedure for setting aside the judgment and decree but the petitioner filed an other class suit being No.29 of 2019 for setting aside the preliminary and final decree passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No. 13 of 2006 without jurisdiction. Now the Partition Execution Case No. 05 of 2017 is pending before the learned Court of Joint District Judge, 2nd Court, Thakurgaon. Therefore, the plaintiff-petitioners could not get any relief by the Other Class Suit No. 29 of 2019 in the eye of law. The learned Advocate further submits that the learned Revisional Court as well as the learned Trial Court did not commit any error of law in its occasioning failure of justice. Therefore, the Rule is liable to be discharged.

I have heard the learned Advocates of both the parties and perused the stay application, other documents and the judgment and order of the Revisional Court below as well as the Trial Court, admittedly the opposite-parties filed the original Partition Suit No. 13 of 2006 against the petitioners before the learned Court of Joint District Judge, 2nd Court, Thakurgaon but the notice was served to the defendant as the present petitioner and he did not appear before the Court of Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No. 13 of 2006. Thereafter, the partition suit was decreed on

ex-parte against the petitioners. Then the opposite parties filed a Partition Execution Case No. 05 of 2017 before the same court and the notice was duly served to the present petitioners as the same address. The present petitioners received the summon and he was appeared before the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Execution Case No. 05 of 2017 on 22.04.2018. The present petitioner long after 14 months i.e. on 26.06.2019 filed an other class suit being No. 29 of 2019 against the present opposite parties for setting aside the preliminary and final decree passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No. 13 of 2006 without lawful. Now the Partition Execution Case No. 05 of 2017 is pending before the learned Joint District Judge, 2nd Court, Thakurgaon and the present petitioner without filing of the Miscellaneous Case under order 9 rule 13 of the Code of Civil Procedure for setting aside the judgment and decree. But the present petitioners filed an Other Class Suit being No.29 of 2019 for setting aside the preliminary and final decree in Partition Suit No.13 of 2006 beyond law. Therefore, the present petitioners beyond law did not entitle to get any relief. Therefore, the Revisional Court as well as the Trial Court did not commit any illegality on this point. I do not find any error of law passed by the revisional

Court below as well as the trial Court in rejecting the application for stay resulting in an error in the decision occasioning failure of justice.

Scrutinizing the relevant papers and documents it is obvious to note that admittedly the opposite parties filed a Suit for Partition in Title Suit no.13 of 2006 before the learned Joint District Judge, 2nd Court, Thakurgaon and the aforesaid Partition Suit was preliminary decreed on 22.01.2013 and final decreed on 22.04.2017. Therefore, the opposite parties filed an Execution Case being Execution Case No. 05 of 2017 before the learned Joint District Judge, 2nd Court, Thakurgaon. But the petitioners claimed that the opposite party obtained the judgment and decree in Partition Suit No.13 of 2006 without serving the notice upon the petitioners. Then the petitioners filed an Other Class Suit No. 29 of 2019 before the learned Court of Joint District Judge, 2nd Court, Thakurgaon for setting aside the preliminary and final decree passed by the learned Court of Joint District Judge, 2nd Court, Thakurgaon in Partition Suit No.13 of 2006. On the other hand, the opposite parties claimed that after a long time without filing of the Miscellaneous Case under Order 9 Rule 13 of the Code of Civil Procedure for setting aside the judgment and decree but the petitioners filed an another

Other Class Suit being No. 29 of 2019 before the learned Court of Joint District Judge, 2nd Court, Thakurgaon for setting aside the judgment and decree is not tenable.

In order to appreciate the submission advanced from the sides of the learned Advocates for the parties having gone through the impugned judgment and order dated 07.11.2019 passed by the learned District Judge, Thakurgaon as well as the judgment and order passed by the learned trial Court dated 01.07.2019. The petitioners filed an application for praying stay out of misconception of law which is not tenable in the eye of law. Now the question raised by the petitioner, whether the notice was properly served or not, it is decided by the trial court after taking evidence on merit. At this stage, it can not be ascertained that the service of summons were properly served or not in the instant case, rather, he could have filed appropriate application in Miscellaneous Case before the court of learned Joint District Judge, 2nd Court, Thakurgaon for setting aside the judgment and decree in Partition Suit No.13 of 2006 or alternatively filed an appeal. But filing Other Class Suit for non service of summons is totally misconceived and not tenable in the eye of law. There is no scope for getting any remedy in the instant case.

Having regard to the facts and circumstances as discussed above I am to hold that the impugned judgment and order there is no illegality or infirmity or misreading or non reading evidence or non consideration of material facts resulting in an error in the decision occasioning failure of justice by which requires no interference by this court. There is no merit in this Rule.

In the result, the Rule is discharged.

However, there will be no order as to costs.

The impugned judgment and order dated 07.11.2019 passed by the learned District Judge, Thakurgaon in Civil Revision No.19 of 2019 rejecting the application for stay and affirming the judgment and order dated 01.07.2019 passed by the learned Joint District Judge, 2nd Court, Thakurgaon in Partition Execution Case No.05 of 2017 is hereby affirmed. The Execution Case will be disposed of in accordance with law.

The order of stay granted earlier by this court is hereby recalled and vacated.

Communicate the judgment and order at once.

Md. Abadul Haque/Bench Officer.